

Federal Constitution

NOTES

Art. 38

Clause (2)(a)

The words “Timbalan Yang di-Pertuan Agong” substituted for the words “Deputy Supreme Head of the Federation” by Act A354, section 11, in force from 27-08-1976.

Clauses (2)(d) & (e): Added by Act A848, paragraph 3(a), in force from 30-03-1993.

Clause (3)

The words “Yang di-Pertua-Yang di-Pertua Negeri” substituted for the word “Governors” by Act A514, section 19, in force from 27-08-1976.

Clause (6)

The words “Timbalan Yang di-Pertuan Agong” substituted for the words “Deputy Supreme Head of the Federation” by Act A354, section 11, in force from 27-08-1976.

Clauses (6)(e) & (f): Added by Act A848, paragraph 3(b), in force from 30-03-1993.

Clause (7)

- a. This Clause which was added by Act 26/1963, subsection 7(3), in force from 16-09-1963, and repealed by Act A354, section 13, in force from 27-08-1976, read as follows:

“(7) The function of the Conference of Rulers of agreeing or disagreeing to the extension of any religious acts, observances or ceremonies to the Federation as a whole shall not extend to Sabah or Sarawak, and accordingly those States shall be treated as excluded from the references in Clause (2) of Article 3 and in this Article to the Federation as a whole.”.

- b. *See* Art. 159(5).

- (a) the election or removal from office of the Yang di-Pertuan Agong or the election of the Timbalan Yang di-Pertuan Agong;
 - (b) the advising on any appointment;
 - (c) the giving or withholding of consent to any law altering the boundaries of a State or affecting the privileges, position, honours or dignities of the Rulers;
 - (d) the agreeing or disagreeing to the extension of any religious acts, observances or ceremonies to the Federation as a whole;
 - (e) the appointment of members of the Special Court under Clause (1) of Article 182; or
 - (f) the granting of pardons, reprieves and respites, or of remitting, suspending or commuting sentences, under Clause (12) of Article 42.
- (7) (*Repealed*).

Chapter 3—The Executive

Executive authority of Federation

39. The executive authority of the Federation shall be vested in the Yang di-Pertuan Agong and exercisable, subject to the provisions of any federal law and of the Second Schedule, by him or by the Cabinet or any Minister authorized by the Cabinet, but Parliament may by law confer executive functions on other persons.

Yang di-Pertuan Agong to act on advice

40. (1) In the exercise of his functions under this Constitution or federal law the Yang di-Pertuan Agong shall act in accordance with the advice of the Cabinet or of a Minister acting under the general authority of the Cabinet, except as otherwise provided by this Constitution; but shall be entitled, at his request, to any information concerning the government of the Federation which is available to the Cabinet.

(1A) In the exercise of his functions under this Constitution or federal law, where the Yang di-Pertuan Agong is to act in

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Art. 39

The words “and exercisable, subject to the provisions of any federal law and of the Second Schedule, by him or by the Cabinet or any Minister authorized by the Cabinet” were inserted by Act 14/1962, section 13, in force from 31-08-1957.

Art. 40

See Art. 153(2).

Clause (1A): Inserted by Act A885, section 4, in force from 24-06-1994.

Clause (2)

The words “Their Royal Highnesses” substituted for the words “Their Highnesses” by Act A31, section 2, in force from 24-03-1971.

Clause (3): *See* Art. 42(4)(a).

accordance with advice, on advice, or after considering advice, the Yang di-Pertuan Agong shall accept and act in accordance with such advice.

(2) The Yang di-Pertuan Agong may act in his discretion in the performance of the following functions, that is to say—

- (a) the appointment of a Prime Minister;
- (b) the withholding of consent to a request for the dissolution of Parliament;
- (c) the requisition of a meeting of the Conference of Rulers concerned solely with the privileges, position, honours and dignities of Their Royal Highnesses, and any action at such a meeting,

and in any other case mentioned in this Constitution.

(3) Federal law may make provision for requiring the Yang di-Pertuan Agong to act after consultation with or on the recommendation of any person or body of persons other than the Cabinet in the exercise of any of his functions other than—

- (a) functions exercisable in his discretion;
- (b) functions with respect to the exercise of which provision is made in any other Article.

Supreme command of armed forces

41. The Yang di-Pertuan Agong shall be the Supreme Commander of the armed forces of the Federation.

Power of pardon, etc.

42. (1) The Yang di-Pertuan Agong has power to grant pardons, reprieves and respites in respect of all offences which have been tried by court-martial and all offences committed in the Federal Territories of Kuala Lumpur, Labuan and Putrajaya; and the Ruler or Yang di-Pertua Negeri of a State has power to grant pardons, reprieves and respites in respect of all other offences committed in his State.

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Art. 42

Clauses (1), (2) & (10)

- a. The words “Territories of Kuala Lumpur and Labuan” substituted for the word “Territory” by Act A585, paragraph 12(a), in force from 16-04-1984.
- b. Subsequently the words “Kuala Lumpur, Labuan and Putrajaya” substituted for the words “Kuala Lumpur and Labuan” by Act A1095, paragraph 14(a), in force from 01-02-2001.

Clause (1)

- a. The words “and all offences committed in the Federal Territory” which appear after the word “court-martial” were inserted by Act A206, section 11, in force from 01-02-1974.
- b. The words “Yang di-Pertua Negeri” substituted for the words “Governor” by Act A354, section 42, in force from 27-08-1976.

(2) Subject to Clause (10), and without prejudice to any provision of federal law relating to remission of sentences for good conduct or special services, any power conferred by federal or State law to remit, suspend or commute sentences for any offence shall be exercisable by the Yang di-Pertuan Agong if the sentence was passed by a court-martial or by a civil court exercising jurisdiction in the Federal Territories of Kuala Lumpur, Labuan and Putrajaya and, in any other case, shall be exercisable by the Ruler or Yang di-Pertua Negeri of the State in which the offence was committed.

(3) Where an offence was committed wholly or partly outside the Federation or in more than one State or in circumstances which make it doubtful where it was committed, it shall be treated for the purposes of this Article as having been committed in the State in which it was tried. For the purpose of this Clause the Federal Territory of Kuala Lumpur, the Federal Territory of Labuan and the Federal Territory of Putrajaya, shall each be regarded as a State.

(4) The powers mentioned in this Article—

- (a) are, so far as they are exercisable by the Yang di-Pertuan Agong, among functions with respect to which federal law may make provision under Clause (3) of Article 40;
- (b) shall, so far as they are exercisable by the Ruler or Yang di-Pertua Negeri of a State, be exercised on the advice of a Pardons Board constituted for that State in accordance with Clause (5).

(5) The Pardons Board constituted for each State shall consist of the Attorney General of the Federation, the Chief Minister of the State and not more than three other members, who shall be appointed by the Ruler or Yang di-Pertua Negeri; but the Attorney General may from time to time by instrument in writing delegate his functions as a member of the Board to any other person, and the Ruler or Yang di-Pertua Negeri may appoint any person to exercise temporarily the functions of any member of the Board appointed by him who is absent or unable to act.

(6) The members of a Pardons Board appointed by the Ruler or Yang di-Pertua Negeri shall be appointed for a term of three years and shall be eligible for reappointment, but may at any time resign from the Board.

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Art. 42—(cont.)

Clause (2)

- a. The words “or by a civil court exercising jurisdiction in the Federal Territory” which appear after the word “court-martial” were inserted by Act A206, section 11, in force from 01-02-1974.
- b. The words “Yang di-Pertua Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976.
- c. The words “and without prejudice to any provision of federal law relating to remission of sentences for good conduct or special services,” were inserted by Act A514, section 2, in force from 15-05-1981. Act A514, subsection 2(2), read as follows:

“Any remission for good conduct or special services authorized by federal law and granted before the commencement of this Act shall be deemed to have been validly granted.”.
- d. *See* note under Art. 42(10).

Clause (3)

- a. The words “For the purpose of this Clause the Federal Territory shall be regarded as a State.” were added by Act A206, section 11, in force from 01-02-1974.
- b. The words “the Federal Territory of Kuala Lumpur or the Federal Territory of Labuan, as the case may be, shall each be regarded as a State” substituted for the words “the Federal Territory shall be regarded as a State” by Act A585, paragraph 12(b), in force from 16-04-1984.
- c. Subsequently, the words “Federal Territory of Kuala Lumpur, the Federal Territory of Labuan and the Federal Territory of Putrajaya” substituted for the words “Federal Territory of Kuala Lumpur or the Federal Territory of Labuan, as the case may be” by Act A1095, paragraph 14(b), in force from 01-02-2001.

Clauses (4), (5), (6), (7) & (8)

The words “Yang di-Pertua Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976.

Clause (7)

The words “by the Ruler or Governor” were inserted by Act 26/1963, section 70, in force from 16-09-1963.

Clause (10)

- a. Added by Act 10/1960, section 4, in force from 31-05-1960, which also amended Clause (2) by inserting the words “Subject to Clause (10), any”.
- b. Act 26/1963, subsection 7(2), in force from 16-09-1963, substituted the words “Penang or Singapore” for the words “or Penang”.
- c. Act 59/1966, section 2, in force from 09-08-1965, restored the original version “or Penang”.
- d. The words “or the Federal Territory” were inserted after the words “Malacca or Penang” by Act A206, section 11, in force from 01-02-1974.
- e. The word “Islamic” substituted for the word “Muslim” and the words “religion of Islam” substituted for the words “Muslim religion” by Act A354, sections 44 and 45, in force from 27-08-1976.

(7) A member of the Legislative Assembly of a State or of the House of Representatives shall not be appointed by the Ruler or Yang di-Pertua Negeri to be a member of a Pardons Board or to exercise temporarily the functions of such a member.

(8) The Pardons Board shall meet in the presence of the Ruler or Yang di-Pertua Negeri and he shall preside over it.

(9) Before tendering their advice on any matter a Pardons Board shall consider any written opinion which the Attorney General may have delivered thereon.

(10) Notwithstanding anything in this Article, the power to grant pardons, reprieves and respites in respect of, or to remit, suspend or commute sentences imposed by any court established under any law regulating Islamic religious affairs in the State of Malacca, Penang, Sabah or Sarawak or the Federal Territories of Kuala Lumpur, Labuan and Putrajaya shall be exercisable by the Yang di-Pertuan Agong as Head of the religion of Islam in the State.

(11) For the purpose of this Article, there shall be constituted a single Pardons Board for the Federal Territories of Kuala Lumpur, Labuan and Putrajaya and the provisions of Clauses (5), (6), (7), (8) and (9) shall apply *mutatis mutandis* to the Pardons Board under this Clause except that reference to “Ruler or Yang di-Pertua Negeri” shall be construed as reference to the Yang di-Pertuan Agong and reference to “Chief Minister of the State” shall be construed as reference to the Minister responsible for the Federal Territories of Kuala Lumpur, Labuan and Putrajaya.

(12) Notwithstanding anything contained in this Constitution, where the powers mentioned in this Article—

- (a) are exercisable by the Yang di-Pertua Negeri of a State and are to be exercised in respect of himself or his wife, son or daughter, such powers shall be exercised by the Yang di-Pertuan Agong acting on the advice of the Pardons Board constituted for that State under this Article and which shall be presided over by him;
- (b) are to be exercised in respect of the Yang di-Pertuan Agong, the Ruler of a State, or his Consort, as the case may be, such powers shall be exercised by the Conference of Rulers and the following provisions shall apply:

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Art. 42—(cont.)

Clause (11)

- a. Added by Act A206, section 11, in force from 01-02-1974, amended by Act A354, section 42, in force from 27-08-1976, by substituting the words “Yang di-Pertua Negeri” for the word “Governor”. This Clause was substituted by Act A585, paragraph 12(c), in force from 16-04-1984 read as follows:

“(11) For the purpose of this Article, there shall be constituted a single Pardons Board for the Federal Territory of Kuala Lumpur and the Federal Territory of Labuan and the provisions of Clauses (5), (6), (7), (8) and (9) of this Article shall apply *mutatis mutandis* to the Pardons Board under this Clause except that reference to “Ruler or Yang di-Pertua Negeri” shall be construed as reference to the Yang di-Pertuan Agong and reference to “Chief Minister of the State” shall be construed as reference to the Minister responsible for the Federal Territory of Kuala Lumpur and the Federal Territory of Labuan.”.

- b. Subsequently, the words “Federal Territories of Kuala Lumpur, Labuan and Putrajaya” substituted for the words “Federal Territory of Kuala Lumpur and the Federal Territory of Labuan” wherever they appear by Act A1095, paragraph 14(c), in force from 01-02-2001.

Clauses (12) & (13): Added by Act A848, section 4, in force from 30-03-1993.

- (i) when attending any proceedings under this Clause, the Yang di-Pertuan Agong shall not be accompanied by the Prime Minister and the other Rulers shall not be accompanied by their Menteri-Menteri Besar;
- (ii) before arriving at its decision on any matter under this Clause, the Conference of Rulers shall consider any written opinion which the Attorney General may have delivered thereon;
- (c) are to be exercised by the Yang di-Pertuan Agong or the Ruler of a State in respect of his son or daughter, as the case may be, such powers shall be exercised by the Ruler of a State nominated by the Conference of Rulers who shall act in accordance with the advice of the relevant Pardons Board constituted under this Article.

(13) For the purpose of paragraphs (b) and (c) of Clause (12), the Yang di-Pertuan Agong or the Ruler of the State concerned, as the case may be, and the Yang di-Pertua-Yang di-Pertua Negeri shall not be members of the Conference of Rulers.

Cabinet

43. (1) The Yang di-Pertuan Agong shall appoint a Jemaah Menteri (Cabinet of Ministers) to advise him in the exercise of his functions.

(2) The Cabinet shall be appointed as follows, that is to say—

- (a) the Yang di-Pertuan Agong shall first appoint as Perdana Menteri (Prime Minister) to preside over the Cabinet a member of the House of Representatives who in his judgment is likely to command the confidence of the majority of the members of that House; and
- (b) he shall on the advice of the Prime Minister appoint other Menteri (Ministers) from among the members of either House of Parliament;

but if an appointment is made while Parliament is dissolved a person who was a member of the last House of Representatives may be appointed but shall not continue to hold office after the beginning of the next session of Parliament unless, if he has been appointed Prime Minister, he is a member of the new House of